

SPR097345 Estate of Donald A. Wiedmann

County: sonoma

Division: Probate

Hearing date: 2026-07-02

Motion: Motion for Relief from Order Entered May 8, 2026

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Estate of Donald A. Wiedmann

SPR097345

Motion for Relief from Order Entered May 8, 2026

Tentative Ruling: The motion is GRANTED. The Court will sign the proposed order lodged May 13, 2026. The proposed opposition must be filed and served by July 13, 2026, or it is deemed waived. The matter is SET for hearing August 28, 2026 at 9:30 a.m. in Department 12. The parties are ordered to comply with local rules 6.2.F.2 and 6.2.F.3 in advance of the continued hearing.

The Court grants the motion pursuant to the mandatory relief provision of California Code of Civil Procedure §473(b). That section requires the Court to direct Christopher R. Milton, Esq. to pay reasonable compensatory legal fees and costs to opposing counsel or parties. However, the would-be opposing party, Richard Wiedmann, and his attorney, Raymond J. Fullerton, Esq., have not opposed the motion, and the Court has no factual basis to determine the appropriate amount of compensation to award. Therefore, the Court will not issue an award of compensation at this time, but, Richard Wiedmann, and/or his attorney Raymond J. Fullerton, Esq., may bring a noticed motion for compensation pursuant to California Code of Civil Procedure §473(b), which should include factual support for the amount requested.